

Anju Mishra v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 16 May 2023 · 2023:AHC:105807-DB · WRIT - C No. 16497 of 2023 · **Disposed by consent; Engineer to redress fresh-connection grievance in accordance with law within three weeks.**

HEADNOTE

A tenant sought a direction that the Executive Engineer act on official endorsements and process a fresh electricity connection. The licensee's counsel submitted that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained and that the statutory remedy should be pursued. Without any opinion on the merits, and with the parties' consent, the writ was disposed of with a direction to respondent no. 5 to look into the grievance and redress it in accordance with law within three weeks of production of a certified copy.

FACTUAL SUMMARY

Anju Mishra, tenant of House No. 15, Mal Godam Road, Shanti Nagar, Etah, applied on 6 July 2022 for a fresh electricity connection in the petitioner's name. The Tehsildar, Etah, on 7 July 2022 endorsed the application and directed the Adhishashi Abhiyanta, Dakshinanchal Vidyut Vitran Nigam Ltd., Vidyut Vitran Kand, Etah, to enquire and take necessary action in accordance with law. The writ sought a direction that this officer act on the endorsements of respondent nos. 3 and 4 within a stipulated time.

HOLDING-UNITS

INTERPLAY · EA2003

Fresh connection — redress under the Act read with the Supply Code

HOLDING

The Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 were treated as a self-contained scheme. Without expressing any opinion on the merits, and with the consent of the parties, the writ was disposed of with a direction to the Adhishashi Abhiyanta, Dakshinanchal Vidyut Vitran Nigam Ltd., Vidyut Vitran Kand, Etah (respondent no. 5) to look into the petitioner's fresh-connection grievance and redress it in accordance with law within three weeks of production of a certified copy of the order. ¶ 2

FLAG No clause number is stated. The order invokes the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005 and directs redress in accordance with law.

PRINCIPLE TAGS

consider-and-redress-in-accordance-with-law A tenant's writ for a time-bound direction on a fresh connection, already endorsed by the Tehsildar to the Executive Engineer, was disposed by consent without a merits finding, leaving that officer to redress the grievance under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005 within three weeks of production of the certified copy. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A FRESH ELECTRICITY CONNECTION IN THE PETITIONER'S NAME AT THE TENANTED PREMISES

The Court declined to express any opinion on the merits and left enquiry and redress to respondent no. 5. ¶ 2

